

[doc. web n. 10080746]

Provision of November 14, 2024

Register of provisions

n. 696 of November 14, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stanzione, President, Prof.

Ginevra Cerrina Feroni, Vice President, Dr.

Agostino Ghiglia, and Attorney Guido Scorza, members, and

Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament

and of the Council of April 27, 2016, concerning

the protection of natural persons with regard to

the processing of personal data, as well as the free

movement of such data and repealing Directive

95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing

"Code regarding the protection of personal data,

containing provisions for the adaptation

of the national legal system to Regulation (EU)

2016/679 of the European Parliament and of the Council, of

April 27, 2016, concerning the protection of

natural persons with regard to the processing of personal data,

as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter

"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning

internal procedures with external relevance,

aimed at carrying out the tasks and

exercising the powers assigned to the Guarantor for the

protection of personal data, approved by

resolution No. 98 of April 4, 2019, published in

G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.

web n. 9107633 (hereinafter "Guarantor Regulation

No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary

General pursuant to Article 15 of the Guarantor's

Regulation No. 1/2000 on the organization and

functioning of the office of the Guarantor for the

protection of personal data, doc. web n. 1098801;

REPORTING Prof. Ginevra Cerrina Feroni;

PREMISED

1. Introduction.

With a complaint submitted pursuant to Article 77 of

the Regulation, Mr. XX complained about the publication,

on the institutional website of the Municipality of Borgo Val di

Taro (hereinafter "Municipality"), of an attachment to

provision No. XX of XX - with which the Regional

Agency for Employment of Emilia-Romagna approved the ranking related to the selection called for the coverage of a permanent position as a document protocol and sorting officer at the Municipality - containing personal data of the complainant and other participants in the selection (name, surname, date of birth, tax code, address, mobile number, email address, educational qualification).

2. The investigative activity.

In response to a request for information from the Authority (note prot. n. XX of XX), by note of XX, prot. n. XX, the Municipality stated, in particular, that:

- "around mid-XX [the Municipality] received from the Employment Center the determination of approval of the ranking of the selection procedure. The determination consisted of three files: main text and two attached files. Having received numerous phone calls regarding the ranking, as it was a document subject to publication, [...] the complete determination [was published] on the institutional website";
- "the complete document was published on the institutional website from XX to XX";
- the Municipality stated that at the time of the publication of "attached file 2 'XX of XX of the Regional Agency for Employment of Emilia Romagna" containing the data of the participants in the procedure, including those of the complainant, it erroneously believed that said file did not contain relevant data;
- the Municipality also stated that it had "issued some provisions and activated appropriate training and controls to ensure that such situations do not occur again."

By note of XX, the Authority, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Municipality pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, for having disseminated, on its institutional website, information related to the complainant and additional participants in the aforementioned selection, in violation of Articles 5, 6 of the Regulation, as well as Article 2-ter of the Code (in the text prior to the amendments made by Legislative Decree No. 139 of October 8, 2021, in force at the time of the facts subject to complaint).

With the same note, the aforementioned holder was invited to submit to the Guarantor written defenses or documents or to request to be heard

by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

By note of XX, the Municipality, which did not request to be heard, submitted a defensive memorandum, stating, in particular, that:

- "it was verified that the file was not accessible by search engines, which could not open the cited file if someone had typed the name of one of the participants as it was not indexed";
- "the small size of the Entity and the pandemic situation led to an extremely reduced availability of staff during the period when the erroneous publication occurred. This certainly affected the effectiveness of the entity, increasing the

****Probability of Error.**** Borgo Val di Taro is indeed a small mountain municipality, and the epidemiological emergency situation at the time rendered a significant part of the already reduced staff non-operational, making it understandable how a single error by an operator could have generated the adverse event.

- Furthermore, from what emerges from the report of the Data Protection Officer, "due to a mere material error during the publication of an external act approving the ranking related to a selection procedure, a file containing personal data exceeding the purpose of publication was also published."

- "The Responsible Officer did not notice the presence of personal data exceeding the legal publicity requirements in the file in question, which he deemed appropriate to publish based on a legal obligation to which the data controller is subject."

- "Once the nature and type of the data subject to erroneous publication were verified (which did not contain data belonging to special categories as per Art. 9 of Reg. (EU) 2016/679), and confirmed by internal checks that the adverse event occurred exclusively and specifically in this case due to a mere material error by the same Responsible Officer, and did not result from the insufficiency or conscious violation of procedures, it was deemed, in agreement with the Data Controller, to activate some countermeasures aimed at further reducing the risk that events of the same type may occur."

- "In particular, an extensive training activity was repeated for all personnel authorized to process data, to ensure and maintain awareness of the obligations related to data processing in the context of the procedures within the entity, and on the balance between the needs for transparency and legal publicity to which the Acts of Public Administrations are subject and the right to the protection of personal data of the Data Subjects."

****3. Outcome of the Investigative Activity. Applicable Legislation.****

The regulation on the protection of personal data provides that public entities, even when operating within competitive and selective procedures for personnel, may process the personal data of the data subjects, including those related to special categories, if the processing is necessary, in general, for the management of the employment relationship and to fulfill specific obligations or tasks provided by law or by Union or Member State law (Articles 6, paragraph 1, letter c), 9, paragraph 2, letter b) and 4, and 88 of the Regulation). The processing is also lawful when it is "necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller" (Article 6, paragraphs 1, letter e), 2 and 3, and Article 9, paragraph 2, letter g), of the Regulation; Article 2-ter of the Code, in the text prior to the amendments made by Decree Law No. 139 of October 8, 2021).

European legislation provides that "Member States may maintain or introduce more specific provisions to adapt the application of the rules of [...] the regulation with regard to processing, in accordance with paragraph 1, letters c) and e), determining more precisely specific requirements for processing and

other measures to ensure lawful and fair processing [...]” (Article 6, paragraph 2, of the Regulation). In this regard, it is highlighted that the “dissemination” of personal data by public entities is permitted only when provided for by a legal norm or, in cases provided by law, by regulation (cf. Article 2-ter, paragraphs 1 and 3, of the Code, in the text prior to the amendments made by Decree Law No. 139 of October 8, 2021).

The data controller is required, in any case, to comply with the principles regarding data protection, among which are “lawfulness, fairness, and transparency” as well as “data minimization,” according to which personal data must be “processed lawfully, fairly, and transparently in relation to the data subject” and must be “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed” (Article 5, paragraph 1, letters a) and c), of the Regulation).

****3.1. The Dissemination of Personal Data.****

As emerges from the documents and statements made by the data controller during the investigation, as well as from the findings made based on the elements acquired, it has been established that the Municipality published from XX to XX on its official website the attachment to provision No. XX of XX - with which the Regional Agency for Employment of Emilia-Romagna approved the ranking related to the selection procedure for the coverage, at the Municipality, of a permanent position as protocol officer - and containing personal data of the complainant and other participants in the competition (about one hundred data subjects), in particular the name and surname, date of birth, tax code, address, mobile number, email address, and educational qualification.

In this regard, it should be noted that the Guarantor, also concerning the dissemination of common data, has clarified on several occasions that even the presence of a specific publicity regime (a circumstance that does not occur in this case) cannot imply any automaticity regarding the online dissemination of personal data and information, nor a derogation from the principles regarding the protection of personal data (see numerous provisions including provision of July 4, 2024, No. 404, doc. web 10050145 and provisions referenced therein). This is also confirmed by the personal data protection system contained in the Regulation, in light of the...

as provided for by the data controller must implement “appropriate technical and organizational measures to ensure that, by default, only personal data necessary for each specific purpose of the processing are processed” and must be “able to demonstrate” – in light of the principle of “accountability” – that it has done so (Articles 5, paragraph 2; 24 and 25, paragraph 2, Regulation).

In this context, it should be noted that the Municipality, albeit due to a mere clerical error by the person responsible for the procedure, by publishing on its institutional website the attachment to provision no. XX of XX, containing the aforementioned personal data, has resulted in the dissemination of such personal data in the absence of a suitable legal basis.

In this regard, it should be emphasized that even in the presence of a legal provision that requires the publication of acts and documents of public administration (see, for example, Article 124 of Legislative Decree No. 267 of August 18, 2000), the principles of data protection must still be respected, including the principle of “data minimization” (Article 5, paragraph 1, letter c), of the Regulation).

Furthermore, it is noted that, since 2014, the Authority, particularly with reference to the publication of rankings for selections and public competitions, has clarified that only relevant and non-excessive data concerning the interested parties must be disseminated (see Part II, paragraphs 3.a) and 3.b) of the “Guidelines on the processing of personal data, also contained in acts and administrative documents, carried out for the purposes of publicity and transparency on the web by public entities and other obligated entities” provision of May 15, 2014, no. 243, web document no. 3134436).

In a similar manner, the Authority had already expressed itself in provision no. 23 of June 14, 2007, containing “Guidelines on the processing of personal data of workers for the purposes of managing the employment relationship in the public sector” (on www.gdpd.it, web document no. 1417809), highlighting that: “It is not lawful to include in the acts of the rankings to be published other types of irrelevant information such as, for example, fixed or mobile phone contacts or the tax code.”

In light of the above considerations, such behavior has resulted in the dissemination of personal data of the complainant and numerous other interested parties (about one hundred participants in the selection), in the absence of a suitable legal basis, in violation of Articles 5, 6 of the Regulation and Article 2-ter of the Code.

4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation – the truthfulness of which may be subject to verification under Article 168 of the Code – although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the closure of the present procedure, as none of the cases provided for by Article 11 of the Regulation of the Authority no. 1/2019 apply.

Therefore, the preliminary assessments of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Municipality is noted for having disseminated online the personal data of the complainant and numerous participants in the aforementioned selection (about one hundred) through publication on its institutional website in violation of Articles 5 and 6 of the Regulation and Article 2-ter of the Code.

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct, Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, the violations are all subject to the sanction provided for by Article 83, paragraph 5, of the Regulation, as also recalled by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

In this context, considering, in any case, that the conduct has exhausted its effects, since the Municipality removed on XX the attachment to provision no. XX of XX, the conditions for the adoption of further corrective measures under Article 58, paragraph 2, of the Regulation do not apply.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Authority, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] corrective measures [provided for] in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the Board [of the Authority] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the website of the Authority pursuant to Article 166, paragraph 7, of the Code” (Article 16, paragraph 1, of the Regulation of the Authority no. 1/2019).

In this regard, considering Article 83, paragraph 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

The aforementioned administrative pecuniary sanction inflicted, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

Considering that:

- with specific regard to the nature, severity, and duration of the violation, it must be noted that the dissemination of data concerned not only the complainant but also the other participants in the selection (about one hundred), even though such publication occurred on the institutional website of the Municipality without indexing on search engines and for a limited period of time (about one month) (cf. Article 83, paragraph 2, letter a), of the Regulation);
- with specific regard to the subjective profile of the violation, it occurred due to a mere material error

by the person responsible for the procedure (Article 83, paragraph 2, letter b), of the Regulation);

- regarding the categories of personal data disseminated, no special categories of data are included (Article 83, paragraph 2, letter g) of the Regulation);

In light of this specific circumstance, it is believed that, in this case, the level of severity of the violation committed by the data controller is medium (cf. European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative fines pursuant to the GDPR" of May 24, 2023, point 60).

That said, the following mitigating circumstances must also be considered:

- there are no previous violations of the same provisions of the Regulation and the Code (cf. Article 83, paragraph 2, letter e), of the Regulation);
- the Municipality has offered good cooperation with the Authority, stating that the violation occurred due to a mere error by the person responsible for the procedure (Article 83, paragraph 2, letter f), of the Regulation);
- the violation occurred during a period characterized by numerous difficulties, on an organizational level, related to the issues of the emergency period due to the spread of the Sars Cov 2 virus (Article 83, paragraph 2, letter k), of the Regulation).

By reason of the aforementioned elements, evaluated as a whole, it is deemed appropriate to determine the amount of the administrative fine at €8,000 (eight thousand) for the violation of Articles 5, 6 of the Regulation, as well as Article 2-ter of the Code, as an administrative fine deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

In this context, it is also believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Authority No. 1/2019, the publication of this section containing the injunction order on the Authority's website should proceed.

This is in consideration of the high number of personal data published concerning the complainant and numerous interested parties (about one hundred) within the framework of a personnel selection procedure, even though the publication occurred for a limited period of time.

Finally, it is noted that the conditions of Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

a) pursuant to Articles 57, paragraph 1, letter f) and 83, of the Regulation, finds the illegality of the processing carried out by the Municipality of Borgo Val di Taro in the terms stated in the reasoning, for the violation of Articles 5, 6 of the Regulation, as well as Article 2-ter of the Code (both in the text prior to the amendments made by Decree-Law of October 8, 2021, in force at the time when the dissemination of the personal data in question began, and in the current text);

ORDERS

b) pursuant to Article 58, paragraph 2, letter i) of the Regulation, the Municipality of Borgo Val di Taro, represented by the legal representative pro tempore, with registered office at Piazza P.V. Manara, 6 - Borgo Val di Taro (PR), Tax Code 00440510345, to pay the sum of €8,000 (eight thousand) as an administrative fine for the violations indicated in this provision;

ORDERS

c) therefore the Municipality of Borgo Val di Taro to pay the aforementioned sum of €8,000 (eight thousand) according to the methods indicated in the annex, within thirty days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is represented that pursuant to Article 166, paragraph 8 of the Code, the offender retains the right to settle the dispute by paying - always according to the methods indicated in the annex - an amount equal to half of the imposed fine within the deadline provided for by Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, for the submission of the appeal as indicated below;

DISPOSES

- d) pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Authority No. 1/2019, the publication of the injunction order on the Authority's website;
- e) pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Regulation of the Authority No. 1/2019, the publication of this provision on the website of the Authority;
- f) pursuant to Article 17 of the Regulation of the Authority No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, it is possible to appeal against this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, November 14, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Cerrina Feroni

THE SECRETARY GENERAL

Mattei